

Kansas State Department of Education / Special Education Services Formal Complaint Request Form

Any parent of a child with an exceptionality, another individual, or agency or organization that believes a public agency (e.g., Kansas State Department of Education (KSDE) or local education agency (cooperative, interlocal, or school district providing special education services) is not following state or federal laws or regulations related to the Individuals with Disabilities Education Act may file a formal complaint with the state department of education.

- A copy of the complaint must also be sent to the public agency
- The complaint must allege a violation of special education laws and regulations that occurred not more than one year before the date the complaint is filed.
- The complaint must be in writing, signed, and sent to Special Education & Title Services at KSDE. The complaint must be mailed, personally delivered, or emailed to the address at the bottom of this form.
- Any document submitted by either the public agency, or parents will be available to the other party upon request.

Your request for a formal complaint investigation must include the following information:

1. The name, address, phone number, and email of the person filing the formal complaint.

Name _____

Address _____

City/State/Zip _____

Telephone _____ Email: _____

2. If alleging violations with respect to a specific child, the name of the school the child is attending and name and address of the residence of the child.

Name of School _____

USD No. (if applicable) _____

School Address _____
(not required)

City/State/Zip _____
(not required)

Telephone _____
(not required)

Name of Child _____ Disability _____
(not required)

Address _____
contact information if the child is homeless

City/State/Zip _____

3. State each of your concerns. You must include the facts that provide the basis of each concern. Such facts must include when and where the concern arose and who, or what circumstances, caused the concern. Also state, to the extent known, what you believe the school district should do to resolve each of your concerns. (Attach additional pages if needed.)

What is Concern #1?

What are the facts?

What do you believe should be done to resolve this concern?

If you have additional concerns, please state: (a) each concern; (b) the facts that support each concern and (c) what you believe should be done to resolve the concern.

Signature Date

NOTE: Federal regulations provide that the school district has the discretion of offering a proposal to resolve the concerns presented in a complaint or offering to participate in voluntary mediation with the complainant. If the parties agree to mediate any of the concerns presented a mediator will be provided by the Kansas State Department of Education, at no expense to the parties.

Formal Complaint Form

Upon receipt of a written, signed complaint, the Formal Complaint Investigator will conduct an investigation and provide a written report of findings to the person or agency making the complaint and to the public agency. If a violation is confirmed, the report will contain corrective actions and timelines to be followed by the public agency. The formal complaint report is final, unless one of the parties appeals the report. Either party may appeal the report by filing a written notice of appeal with the Kansas Commissioner of Education ATTN: Special Education & Title Services Team (SETS) (Commissioner's designee) within 10 days of the date of the report. The notice of appeal is filed on the day it is received in the SETS office. Alternatively, appeals may be emailed to formalcomplaints@ksde.org. Appeals filed with this email address are received on the day the email is received during regular business hours on a day SETS is open for business, (usually Monday–Friday 8:00 a.m.–5:00 p.m.) Appeals received after 5:00 p.m. on a business day or received on a day when SETS is not open (such as weekends, holidays, inclement weather closings, etc.) are received on the first business day after delivery when SETS is open for business.

The formal complaint must be signed and mailed, personally delivered, or emailed to:

Formal Complaint Investigator
KS State Dept. of Education
Special Education & Title Services
900 SW Jackson St. Suite 602
Topeka, KS 66612
formalcomplaints@ksde.gov

Complaints filed by email are received on the day the email is received during regular business hours on a day SETS is open for business, (usually Monday–Friday 8:00 a.m.–5:00 p.m.) Complaints received after 5:00 p.m. on a business day or received on a day when SETS is not open (such as weekends, holidays, inclement weather closings, etc.) are received on the first business day after delivery when SETS is open for business. If a complaint is received by mail or filed in person, it is considered received on the day it arrives at the SETS office.